

HOUSE No. 4566

The Commonwealth of Massachusetts

PRESENTED BY:

Lindsay N. Sabadosa and Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the operation of golf carts in rural communities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Lindsay N. Sabadosa</i>	<i>1st Hampshire</i>	<i>8/26/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>8/26/2025</i>

HOUSE No. 4566

By Representative Sabadosa of Northampton and Senator Comerford, a joint petition (subject to Joint Rule 12) of Lindsay N. Sabadosa and Joanne M. Comerford relative to the operation of golf carts in certain rural communities. Transportation.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the operation of golf carts in rural communities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 90 of the General Laws, as appearing in the 2022 official edition, is
2 hereby amended by inserting after section 1F, the following section:-

3 “Section 1F ½ (a) The governing body of a rural municipality, which has a population of
4 less than 10,000 and a population density under 500 people per square mile, that accepts this
5 section in the manner provided in section 4 of chapter 4 may authorize the operation of golf carts
6 on the public ways under the jurisdiction of the rural municipality subject to the requirements of
7 section 1F of chapter 90, and the requirements set forth herein, and in any bylaw passed by the
8 rural municipality that is consistent with this section. For the purposes of this section, a golf cart
9 shall conform to the safety and equipment standards and requirements necessary for the
10 operation of a low-speed vehicle as defined in section 1 of chapter 90. No rural municipality
11 shall permit the operation of a golf cart that does not conform to the safety and equipment

standards of a low-speed vehicle as defined in said section 1 on its public ways. No rural municipality shall permit the operation of a golf cart on sidewalks.

(b) No person shall operate a golf cart on any public way under the control of the rural municipality unless such golf cart is recorded with the town clerk in accordance with a recording process described in regulations promulgated by the registrar, displays on the rear right fender of the golf cart a decal valid for one calendar year provided by the rural municipality that the golf cart has been recorded, displays a slow moving vehicle emblem on the rear of the vehicle as required by section 7 and by 540 C.M.R. § 22.11, is equipped as required by 49 C.F.R. § 571.500, as amended, and as required by this chapter, meets the insurance certificate requirements of section 34B and is titled under chapter 90D, and unless it has first passed an annual safety inspection consistent with the annual low-speed vehicle inspection under section 7A, or has otherwise first passed an alternative safety inspection promulgated by regulation by the registrar specifically for golf carts, said alternative safety inspection shall be conducted by the rural municipality's chief of police or designee. No golf cart shall be required to display a registration plate.

(c) No person shall operate a golf cart on any public way without a valid driver's license, except that an operator with a valid learner's permit who is at least 16 years of age may operate a golf cart with a validly licensed driver who is 21 years of age or older and who has had at least one year of driving experience and who is occupying the seat beside the driver.

(d) No person shall operate a golf cart on a public way if any component of the vehicle has been modified from the original manufacturer's equipment in such a way as to enhance its

33 speed. Without limitation, such modifications include the removal of the governor or replacing
34 the engine and power train with a larger one.

35 (e) No person shall operate a golf cart on a public way at a speed in excess of 20 miles
36 per hour. Operation of a golf cart on any way is subject to the limits of section 1F of chapter 90.

37 (f) No person shall consume alcohol while operating a golf cart on any public way and no
38 operator or passenger shall have an open container of alcohol within the golf cart while it is
39 being operated. A person operating a golf cart on any way shall be subject to sections 23 and 24
40 of chapter 90.

41 (g) No person shall operate a golf cart on a public way between one-half hour after sunset
42 and one-half hour before sunrise.

43 (h) Golf carts operating on public ways shall stay to the right of the way and not impede
44 the regular flow of traffic.

45 (i) All operators and passengers must wear seat belts when a golf cart is operated on a
46 public way.

47 (j) A rural municipality may adopt a bylaw establishing fines for violations of this
48 section, and fees for the recording process and for the safety inspection, provided however that
49 nothing herein shall prohibit any law enforcement officer from acting within the scope of their
50 duties by enforcing any traffic law or regulation using a uniform traffic citation and applying the
51 penalties therein.

52 (k) No golf cart shall be operated outside the boundaries of the rural municipality in
53 which it is recorded. Operation of a golf cart on a public way outside said recorded rural

54 municipality's boundaries shall count as operation of an unregistered vehicle under section 9 of
55 this chapter, and violations for the same shall be subject to the fine structure within said section
56 9.

57 SECTION 2: Within 90 days of the passage of this act, the Registrar shall promulgate
58 regulations specifying, at a minimum, the procedures and requirements a rural municipality must
59 follow for the recording process and safety inspection of golf carts. No rural municipality may
60 record or inspect any golf carts or permit the operation of a golf cart on the public ways subject
61 to its control prior to publication of final regulations by the registrar.